DATED 14 MAY 2025

SETTLEMENT AGREEMENT

between

ASHBOURNE HEALTHCARE GROUP LIMITED

and

PRIYA OKAFOR

THIS AGREEMENT is made on the date set out above

PARTIES

1. ASHBOURNE HEALTHCARE GROUP LIMITED (company number 06721904) whose registered office is at Friars Gate, 1010 Cambourne Business Park, Cambridge CB23 6DP (the "Company"); and

2. PRIYA OKAFOR of 14 Marlow Court, Cambridge CB4 2HN (the "Employee").

BACKGROUND

3. The Employee was employed by the Company as Regional Operations Director (East). The Employee's employment terminated by reason of redundancy on 31 January 2025 (the "Termination Date").

4. The Employee presented a claim to the Employment Tribunal under case number 2204417/2025 (the "Proceedings"). The parties have agreed to settle the Proceedings and all other claims the Employee may have on the terms set out below, without any admission of liability by the Company.

1. Definitions

5. **1.1** In this Agreement: "Adviser" means Rachel Hartley of Birchall Stone LLP; "Claims" means the claims set out in clause 3; "Termination Payment" has the meaning given in clause 2; and "Tax" means income tax and employee national insurance contributions.

2. Termination payments

6. **2.1** The Company shall, within 28 days of the later of the date of this Agreement and the date on which it receives a copy signed by the Employee and the Adviser's certificate, pay or provide to the Employee:

    (a) the sum of £30,000 in respect of statutory and contractual notice and accrued but untaken holiday, less Tax (the "Taxable Payment"); and

    (b) the sum of £85,000 as compensation for loss of employment (the "Compensation Payment"), the first £30,000 of which the parties believe may be paid without deduction of Tax under sections 401 and 403 of the Income Tax (Earnings and Pensions) Act 2003, and the balance subject to Tax,

    6.2 (together the "Termination Payment").

7. **2.2** The Company will pay a contribution of £750 plus VAT directly to the Adviser in respect of the Employee's legal costs of advising on this Agreement, on receipt of an invoice addressed to the Employee but expressed to be payable by the Company.

3. Settlement of claims

8. **3.1** The Employee accepts the terms of this Agreement in full and final settlement of the Proceedings and of all and any claims which the Employee has or may have against the Company arising out of or in connection with her employment or its termination, whether under contract, statute, tort or otherwise, including in particular (but without limitation):

   (a) unfair dismissal (ordinary and automatically unfair) under sections 94 and 103A of the Employment Rights Act 1996;

   (b) detriment on the ground of having made a protected disclosure under section 47B of the Employment Rights Act 1996;

   (c) wrongful dismissal and breach of contract, including claims for notice pay;

   (d) any claim for a redundancy payment;

   (e) any claim for holiday pay under the Working Time Regulations 1998; and

   (f) any claim for unlawful deductions from wages under Part II of the Employment Rights Act 1996.

9. **3.2** The waiver in clause 3.1 does not apply to: (a) any claim to enforce this Agreement; (b) any claim in respect of accrued pension rights; or (c) any claim for personal injury of which the Employee is not aware and could not reasonably be aware at the date of this Agreement (excluding any claim for psychiatric injury arising out of the matters pleaded in the Proceedings, which is settled).

4. Withdrawal of proceedings

10. **4.1** The Employee shall, within seven days of receiving the Termination Payment, present to the Tribunal a request to withdraw the Proceedings, and consents to the Proceedings being dismissed on withdrawal.

5. Confidentiality and announcements

11. **5.1** The parties shall keep the existence and terms of this Agreement and the circumstances of the termination confidential, save as required by law, to professional advisers, to HM Revenue & Customs, or (in the Employee's case) to her immediate family on terms that they keep the information confidential.

12. **5.2** If asked about the Employee's departure, the parties shall confine themselves to stating that the Employee left following a reorganisation. Nothing in this Agreement prevents the Employee from making a protected disclosure or reporting a matter to a regulator including the Care Quality Commission.

6. Non-derogatory statements

13. **6.1** Neither party shall make or publish any derogatory or disparaging statement about the other (and, in the Company's case, its officers and employees). The Company shall procure that the Chief Executive and the Chief Operating Officer abide by this clause.

7. Reference

14. **7.1** The Company shall, on receipt of a written request, provide a reference in the agreed form set out in the Schedule, and shall ensure that any oral reference is consistent with it.

Confidential and may be legally privileged.

8. Warranties

15. **8.1** The Employee warrants that she has no claims against the Company other than those settled by this Agreement, and that she is not aware of any facts that might give rise to such a claim.

9. Statutory conditions

16. **9.1** The conditions regulating settlement agreements under section 203(3) of the Employment Rights Act 1996 and the equivalent provisions of the other statutes referred to in clause 3 are satisfied. The Employee has received independent legal advice from the Adviser, who is a relevant independent adviser holding a current practising certificate and covered by professional indemnity insurance, as to the terms and effect of this Agreement and its effect on her ability to pursue the Claims.

10. Entire agreement and governing law

17. **10.1** This Agreement constitutes the entire agreement between the parties relating to its subject matter. This Agreement is governed by the law of England and Wales and the parties submit to the exclusive jurisdiction of the courts and tribunals of England and Wales. Although marked “without prejudice and subject to contract” during negotiation, this Agreement is intended to be and is an open and binding agreement once signed by both parties and the Adviser.

Signed: _____ **for and on behalf of Ashbourne Healthcare Group Limited**

Signed: _____ **Priya Okafor**

Signed: _____ **Rachel Hartley, Birchall Stone LLP (Adviser)**

SCHEDULE — Agreed form of reference

To whom it may concern. Ms Priya Okafor was employed by Ashbourne Healthcare Group Limited from 14 May 2018 to 31 January 2025, latterly as Regional Operations Director (East). In that role she was responsible for the operational management and regulatory compliance of the Company's East region services. Ms Okafor left the Company following a reorganisation of its regional structure. We confirm she met the requirements of her role. It is the Company's policy to provide references of this factual nature only.